

Court No. - 21

Case :- WRIT - C No. - 5565 of 2018

Petitioner :- S. N. Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Tiwari

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Petitioner has approached this Court challenging the proceedings initiated by the respondent Corporation for recovery of outstanding charges for consuming electrical energy. Admittedly there is a dispute between petitioner and respondent Corporation with respect to the outstanding dues. Twice the petitioner has approached this Court by filing Writ Petition No. 50469 of 2017 which was disposed of vide order dated 31.10.2017 and Writ Petition No. 58173 of 2017 which was dismissed vide order dated 06.12.2017. The writ petition was dismissed on the ground that the petitioner has statutory remedy by raising the dispute before the Consumer Grievances Redressal Forum and Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Admittedly petitioner has approached the Forum and the matter is pending. In the meantime the recovery proceedings were initiated and citation has been issued.

Learned counsel for the petitioner contends that on one hand though notice has been issued twice to the Corporation, it is not appearing before the Grievance Redressal Forum and Ombudsman whereas on the other hand the amount which is in dispute before the Consumer Grievance Redressal Forum is sought to be recovered as arrears of land revenue.

Under Clause 6.10 of the Consumer Grievances Redressal Forum and Electricity Ombudsman Regulations 2007, the Forum is empowered to pass an interim orders, as it may consider necessary, pending final disposal of the complaint. Admittedly the complaint made by the petitioner is pending adjudication.

Keeping in view the aforesaid fact, we dispose of the writ petition by providing that the petitioner may make an application seeking stay of the proceedings before the Consumer Grievances Redressal Forum where his complaint is pending with a direction to the Forum that in case any application is made with respect to his grievance within a period of two weeks from today it shall proceed to decide the same in accordance with law by a reasoned and speaking order after giving opportunity of hearing to all concerned within a further period of four weeks from the date of making of the application.

For a period of six weeks from today or till the disposal of the complaint the aforesaid recovery proceedings against the petitioner shall be kept in abeyance.

It is clarified that in case such application for stay of the disputed amount is not filed within the stipulated period, the interim protection shall stand vacated. In such situation the respondent Corporation will be at liberty to realise the amount in accordance with law.

Order Date :- 12.2.2018

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